Nathan D. Chapman (SBN 338735)
nchapman@kcozlaw.com
Jonathan D. Marvisi
jmarvisi@kcozlaw.com
KABAT CHAPMAN & OZMER LLP
707 Wilshire Blvd, Suite 4800
Los Angeles, CA 90017
Telephone: (213) 493-3980
Facsimile: (404) 400-7333

Attorneys for Defendants Randstad US, LLC and Randstad North America, Inc.

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

NICHOLAS A. VENTURA,

Plaintiff,

vs.

RANDSTAD US LLC, RANDSTAD NORTH AMERICA INC., HIREWELL, LLC, KORN FERRY, and KORN FERRY (US)

Defendants.

CASE NO. 5:25-CV-02931-SRM-DTB

Hon. Serena R. Murillo

DEFENDANTS RANDSTAD US, LLC'S AND RANDSTAD NORTH AMERICA, INC.'S REPLY IN SUPPORT OF THEIR MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT

Hearing Date: August 12, 2026
Time: 1:30 p.m.
Dept: Courtroom 5D, 5th Fl

Complaint filed: September 25, 2025
FAC Filed: May 21, 2026
Trial Date: Not Set

I. ARGUMENT

A. Plaintiff Has Abandoned His Opposition to Randstad's Motion.

Since the beginning of this case, Plaintiff Nicholas A. Ventura has openly admitted that he was the victim of a job scam perpetrated by unknown, third-party scammers who have no affiliation with Defendants Randstad US, LLC or Randstad North America, Inc. (collectively, "Randstad"). (*See, e.g.*, Doc. 1-1 ¶ 21 (admitting that unidentified third-party scammers "participated in a scheme to defraud Plaintiff . . . through the impersonation of legitimate recruiting companies," *i.e.* Randstad); Doc. 62 ¶ 15 ("Annie Actor [one of the alleged scammers] was not employed by, contracted with, or otherwise authorized to represent Randstad . . . Annie Actor's invocation of Randstad's name . . . was deliberate, calculated, and designed to exploit the . . . brand recognition of Defendant Randstad to induce Plaintiff's reliance."); *id.* ¶ 21 ("Annie Actor's use of two distinct corporate identities (Randstad on April 13, 2024 and Hirewell on April 15, 2024) within a 48-hour period . . . establishes that the Fraudulent Actors were operating a coordinated enterprise that systematically misappropriated the brand identities of multiple legitimate recruiting firms, including Defendants, as instrumentalities of the scheme." (emphasis added)).) Accordingly, Randstad has argued throughout this case that Plaintiff's own allegations foreclose his claims against Randstad. (*See, e.g.*, Doc. 12-1; Doc. 30; Doc. 64.) Nevertheless, Plaintiff has steadfastly refused to dismiss Randstad from this lawsuit.

In the instant Motion, Randstad argued that the Court should dismiss Plaintiff's First Amended Complaint ("FAC") with prejudice because, among other reasons, he admits that the alleged bad actors were merely impersonating Randstad, and he did not allege "that Randstad knew about, coordinated with, controlled, or was otherwise involved in the conduct of the scammers," nor did he allege how Randstad "supposedly participated in or ratified the Fraudulent Actor's conduct." (Doc. 64 at 10–12.) Randstad also argued that Plaintiff's unpled claims listed on the cover of his FAC

should be disregarded or dismissed and that Plaintiff should be denied another opportunity to amend. (*Id.*)

In his opposition brief, Plaintiff completely ignores the merits of these arguments, instead making two technical, procedural arguments (addressed below). Critically, Plaintiff still does not contend that Randstad had any affiliation with the alleged scammers at issue, does not address the substance of Randstad's arguments listed above, and tacitly admits that he is currently in possession of no evidence suggesting that Randstad was affiliated in any way with the scam at the heart of his FAC. (*See generally* Doc. 67.) For this simple reason, the Court should deem Plaintiff's opposition to those arguments abandoned and grant Randstad's Motion in its entirety. *See, e.g.*, *Lunn v. City of Los Angeles*, 629 F. Supp. 3d 1007, 1014 (C.D. Cal. 2022) ("Where a party fails to address arguments against a claim raised in a motion to dismiss, the claims are abandoned and dismissal is appropriate.").

B. Plaintiff's Technical Arguments Do Not Warrant Denying Randstad's Motion.

1. Plaintiff's Arguments Concerning Additional Discovery Are Meritless.

Plaintiff argues that the Court should deny Randstad's motion so that he can issue third-party subpoenas, and that without "limited early discovery," "Plaintiff cannot connect the individuals who defrauded him to Randstad itself." (Doc. 67 at 6–8.) As an initial matter, this argument is tantamount to an admission that Plaintiff has no evidence or reason to believe that Randstad was involved in the scam, which is consistent with the deficient allegations in his FAC.

Plaintiff's argument concerning early discovery is also misguided because Randstad is not urging dismissal based upon Plaintiff's lack of evidence; rather, the Complaint should be dismissed because Plaintiff *admits* that Randstad was not affiliated with the alleged scammers or scam, and his claims therefore must fail as a matter of law for all the reasons discussed in the Motion. Without an adequately pled complaint, there is no basis for Plaintiff to seek discovery from Randstad. *Persian*

Gulf Inc. v. BP W. Coast Prods. LLC, 225 F. Supp. 3d 1178, 1180 (S.D. Cal. 2016) (binding law "does not allow the court discretion to order pre amendment plausibility discovery," and, therefore, "Plaintiffs are not entitled to discovery in order to allege sufficient facts to 'nudge [a] claim across the line from conceivable to plausible.'")

Plaintiff's reliance on *Neubronner v. Milken*, 6 F.3d 666, 672 (9th Cir. 1993) and *Semitool, Inc. v. Tokyo Electron Am., Inc.*, 208 F.R.D. 273, 277 (N.D. Cal. 2002) is misplaced. In *Neubronner*, the Ninth Circuit recognized that "the general rule that allegations of fraud based on information and belief do not satisfy Rule 9(b) may be relaxed with respect to matters within the opposing party's knowledge." *Neubronner*, 6 F.3d at 672. However, the Court also emphasized that "this exception does not nullify Rule 9(b); a plaintiff who makes allegations on information and belief ***must state the factual basis for the belief***." *Id.* (emphasis added). The *Neubronner* court affirmed the district court's dismissal of a complaint under Rule 9(b). *Id.* As applied here, *Neubronner* supports Randstad's position because: (1) Plaintiff has not established that the exception applies because he has identified no reason to believe that Randstad is in possession of any evidence concerning his allegations; and (2) even if he could establish that the exception applies, he would still need to explain why and how he believes Randstad was involved in the scam, which he has completely failed to do. *See id.*

Plaintiff's reliance on *Semitool* fares no better because it concerns expedited discovery where no motion to dismiss is pending. *Semitool*, 208 F.R.D. at 277. Moreover, setting aside all the issues discussed above, Plaintiff fails to establish "good cause" for early discovery against Randstad because all the discovery he seeks is from third parties—***not Randstad***. (*See, e.g.*, Doc. 67 at 8 ("the requests are narrowly tailored to third-party carriers").)

Accordingly, Plaintiff's arguments concerning early discovery are meritless and do not support denying Randstad's Motion.

2. Plaintiff and Randstad Conferred Repeatedly About the Issue Underlying the Instant Motion.

Finally, Plaintiff opposes Randstad's motion based on the technical argument that Randstad did not adequately confer with him prior to filing the instant Motion. (Doc. 67 at 5–6.) This argument is meritless. Contrary to Plaintiff's arguments, counsel for Randstad has been conferring with him about the central issue at the heart of the instant Motion—*i.e.* that Randstad and the other defendants were admittedly not involved in the scam—since before the case was removed to federal court. (*See* Doc. 12-1 at 13 ¶ 2; Doc. 64 at 16 ¶ 2.) The Court held an in-person hearing where these issues were discussed between Plaintiff, counsel, and the Court, and the Court subsequently ordered Randstad to file the instant motion. (*See* Doc. 60.) Plaintiff remained steadfast, even after follow-up conferral attempts, that he would not dismiss Randstad from the case. (*See* Doc. 64 at 16 ¶ 4.) The key dispute between Randstad and Plaintiff is and has always been the same: Plaintiff admits that Randstad has no affiliation with the scammers or involvement with the scam, and Plaintiff admittedly lacks any evidence showing that Randstad was in fact involved, and yet Plaintiff refuses to dismiss Randstad from the lawsuit. The Parties adequately conferred about these issues and could not reach a resolution. (*See* Doc. 64 at 16.)

Plaintiff argues that the Court should reciprocally deny Randstad's Motion because the Court previously "struck three of Plaintiff's motions because '[he] filed the Motions without including a statement articulating that the parties met and conferred or that he attempted to contact Defendants prior to filing the motions.'" (Doc. 67 at 5 (citing Doc. 44 at 2).) Of course, the difference here is that Randstad *did* confer with Plaintiff and included a statement confirming the same. (Doc. 64 at 16.) Moreover, Plaintiff has failed to explain how any further conferrals would be productive in these circumstances, where the Parties have been at an impasse over the fundamental viability of Plaintiff's case against Randstad since the inception of the case. *See, e.g.*, *Jacobson v. Schwarzenegger*, 650 F. Supp. 2d 1032, 1048 (C.D. Cal.

2009) (rejecting a plaintiff's arguments under Local Rule 7-3 where plaintiff did not contest that the parties had conferred).

II. CONCLUSION

For the foregoing reasons and those discussed in Randstad's opening brief, Defendants Randstad US, LLC and Randstad North America, Inc. respectfully request that the Court dismiss Plaintiff's First Amended Complaint against Randstad in its entirety and with prejudice, without further opportunity to amend.

Dated: July 29, 2026

KABAT CHAPMAN & OZMER LLP

By: *s/ Nathan D. Chapman*
Nathan D. Chapman

Attorneys for Defendants Randstad US, LLC and Randstad North America, Inc.

CERTIFICATE OF COMPLIANCE

The undersigned, counsel of record for Defendants Randstad US, LLC and Randstad North America, Inc., certifies that this brief contains 1980 words, which complies with the word limit of L.R. 11-6.1.

Dated: July 29, 2026

KABAT CHAPMAN & OZMER LLP

By: *s/ Nathan D. Chapman*
Nathan D. Chapman

Attorneys for Defendants Randstad US, LLC and Randstad North America, Inc.

PROOF OF SERVICE

U.S. DISTRICT COURT, CENTRAL DISTRICT OF CALIFORNIA

I am employed in the County of Los Angeles, State of California; I am over the age of 18 and not a party to the within action; my business address is 707 Wilshire Blvd, Suite 4800, Los Angeles, CA 90017.

On July 29, 2026, I served the foregoing document(s) described as **DEFENDANTS RANDSTAD US, LLC'S AND RANDSTAD NORTH AMERICA, INC.'S REPLY IN SUPPORT OF THEIR MOTION TO DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT** on the interested parties to this action by delivering a copy thereof addressed to each of said interested parties at the following address(es): SEE ATTACHED.

☐ **(BY MAIL)** I am readily familiar with the business practice for collection and processing of correspondence for mailing with the United States Postal Service. This correspondence shall be deposited with the United States Postal Service this same day in the ordinary course of business at our Firm's office address. Service made pursuant to this paragraph, upon motion of a party served, shall be presumed invalid if the postal cancellation date or postage meter date on the envelope is more than one day after the date of deposit for mailing contained in this affidavit.

☒ **(BY ELECTRONIC SERVICE)** by causing the foregoing document(s) to be electronically filed using the Court's Electronic Filing System which constitutes service of the filed document(s) on the individual(s) listed on the attached mailing list.

☒ (Federal) I declare that I am employed in the office of a member of the bar of this court at whose direction the service was made. I declare under penalty of perjury under the laws of the United States that the above is true and correct.

Executed on July 29, 2026, at Los Angeles, California.

s/ Alexandra Moskow
Alexandra Moskow

SERVICE LIST

Nicholas A Ventura
16232 Promontory Road
Chino Hills, CA, 91709
Email: nicholasaventura@hotmail.com

In Pro Per

Christine Said
Felton T. Newell, Jr.
SANDERS ROBERTS LLP
1055 West 7th Street, Suite 3200
Los Angeles, CA 90017
Email: christine@newellpc.com
Email: felton@newellpc.com

Attorneys for Hirewell Inc.

Jason L. Liang
John K. Ly
LIANG LY LLP
601 South Figueroa Street, Suite 1950
Los Angeles, CA 90017
Email: jliang@lianglyllp.com
Email: jly@lianglyllp.com

Attorneys for Korn Ferry and Korn Ferry (US)